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CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER – CITY OF BEAUMONT

Tentative Ruling:

Moving party: Defendant City of Beaumont

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendant City of Beaumont demurs to the 4th and 6th causes of action in Plaintiffs' FAC on the grounds that they fail to state facts sufficient to constitute a cause of action against City. In particular, City asserts that the claims fail to identify any statute giving rise to a mandatory duty that would support liability against the City. The FAC names City of Beaumont in the 2nd (dangerous condition of public property), 4th, 6th and 7th (wrongful death) causes of action.

In opposition, Plaintiffs assert that the claims are properly pled sufficient to survive demurrer. Plaintiffs assert that Gov. Code sections 815.2(a), 815.4 and/or 835 provide liability against the City and is not immune under either section 815.2(b) or Health & Safety Code section 1799.107(a) because the conduct for which it is liable was performed in bad faith and in a grossly negligent manner. Next, Plaintiffs assert that the 4th cause of action for negligent failure to protect/voluntary undertaking survives demurrer as City had a duty arising from a special relationship with Plaintiffs arising out of the City's conduct and its creation of the peril that led to their need for medical assistance. Plaintiffs further assert that the allegations of gross negligence are

adequately pled as they pled specific ultimate facts and bad faith and whether the conduct was grossly negligent is a question of degree for the trier of fact. Plaintiffs assert that City's reliance on *Eastburn* is misguided and *Arista* and *Wright* confirm Plaintiffs' ultimate facts of gross negligence survive demurrer. Lastly, as to the 6th cause of action, Plaintiffs assert it alleges sufficient facts of bad faith and gross negligence in emergency dispatch to survive demurrer.

In reply, City asserts that Plaintiffs heavily rely on the improper declaration of their counsel, Robert B. Reagan, to describe additional facts not contained in the First Amended Complaint. The Court will not consider the additional facts for anything other than the fact that Plaintiffs could potentially plead additional facts, but given this is the first demurrer to be considered the court already leans toward the provision of sustained with leave to amend.

Otherwise, City asserts that Plaintiffs concede the deficiencies in the 4th and 6th causes of action. City asserts that Plaintiffs cannot allege a special relationship giving rise to a duty by the City to provide aid. Further, City asserts that the FAC fails to allege facts that City created the peril and therefore had a duty to provide aid. Next, City asserts that *Arista* and *Wright* do not establish the sufficiency of Plaintiffs' gross negligence allegations. City also asserts that the question of whether the allegations of gross negligence are sufficient is a question of law for the court. As to the 6th cause of action, City reasserts that it fails for lack of specificity.

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a patrol vehicle in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into a vehicle that was lawfully negotiating a left turn, killing the driver Gavin Hinckley and leaving Madeline Fox suffering life-threatening permanent injuries. The accident occurred at the intersection of Cherry Valley Boulevard and Roberts Street in the County of Riverside.

The location of the accident was owned or controlled by County, City of Beaumont and the City of Calimesa and was in a dangerous condition.

After the accident, City of Beaumont took affirmative steps to divert life-saving medical care away from Gavin and Madeline. By voluntarily undertaking the responsibilities to manage, control, and secure the scene of the collision, City of Beaumont created a special relationship with Madeline and Gavin giving rise to a duty of care to perform life-saving medical care with reasonable diligence and without increasing the risk of harm to them.

City of Beaumont owed a duty to Madeline and Gavin to exercise reasonable care in the receipt, processing, and dispatch of emergency services. After the collision, City of Beaumont, acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene. Despite the severe, life-threatening injuries suffered by Madeline and Gavin City of Beaumont demonstrated an extreme departure from the

standard of care by failing to properly categorize the severity of their medical emergency, failing to follow established protocols, failing to prioritize medical aid to them over Wilburn's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. This conduct constituted a systemic and reckless disregard for the lives of Madeline and Gavin and were a substantial factor and the legal and proximate cause of Madeline and Gavin's injuries.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration pursuant to its discretion under CCP section 436(b).

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as

true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that City did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything City did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. **Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.**

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall “greatly below the standard established by law for the protection of others.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. **Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.**